

Court No. - 40

Case :- WRIT - C No. - 35664 of 2022

Petitioner :- Kamar Jahan

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Pavan Kumar

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard Sri Pavan Kumar, learned counsel for the petitioner, Shri Pranjal Mehrotra, learned counsel for Paschimanchal Vidyut Vitran Mandal, Bijnor and learned Standing Counsel for the State respondent no.1.

In pith and substance, the petitioner is asking this Court to command the respondents to decide the application dated 15.04.2022 and provide electricity connection in the house of petitioner situated in Mohalla Lohari Sarain, Near Sharbat Vali Gali Masjid, Kasba Nagina, District Bijnor, U.P.

Shri Pranjal Mehrotra, learned counsel for Paschimanchal Vidyut Vitran Mandal, Bijnor and learned Standing Counsel submit that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioners can pursue the remedy as is available to them under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

No useful purpose would be served in keeping the writ petition pending.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is ***disposed of*** finally with a direction to the Sub Divisional Officer, Paschimanchal Vidyut Vitran Mandal, Dhampur Road Nagina, Bijnor (respondent no.2) to consider the application of petitioner and pass appropriate order, strictly in accordance with law, within a period of three weeks from today from the date of production of a certified copy of this order before him.

Order Date :- 7.2.2023

A. Pandey